GEN 1.2 民用航空器之入境、過境及離境

1.2.1 通則

1. 凡飛越中華民國國境或在中華民國境內任何機場降落之航空器，應按照中華民國有關民航之現行法規實施。

2. 國際飛航之民用航空器必須以臺灣桃園國際機場或高雄國際機場或經行政院核准飛航國際包機之機場為臺北飛航情報區內之進出口站。

1.2.2 定期班機

1. 通則

   a. 定期飛航之航空器，飛入飛出國境並在境內起降者，依條約或協定之規定辦理，其定期飛航時刻表，應於實施前20日送達民用航空局，經核准後實施。

   b. 定期飛航之航空器飛越國境者，其班機時刻表，應於實施7工作日前送達臺北區域管制中心，經核准後實施。

2. 航空器結關手續之文書規定

   a. 下列文件應於航空器辦理出境結關手續時提出，各文件需依照載於國際民航公約第9號附約附錄之標準格式，並以正楷英文或中文製備之。

   b. 離到場航空器所需結關文件。

GEN 1.2 ENTRY, TRANSIT AND DEPARTURE OF AIRCRAFT

1.2.1 GENERAL

1. All flights into, from, or over the territory of the Republic of China, shall be carried out in accordance with the valid civil aviation regulations of the Republic of China.

2. Aircraft landing in or departing from Taipei FIR must make their first landing at, or final departure from Taipei/Taiwan Taoyuan International Aerodrome, Kaohsiung International Aerodrome, or other authorized aerodromes.

1.2.2 SCHEDULED FLIGHTS

1. General

   a. The scheduled flights landing in and departing from the territory of the Republic of China shall be carried out in accordance with the Air transport or Agreement for Exchange of Traffic Rights. The schedule must be submitted to the CAA 20 days prior to the operation for approval.

   b. The schedule of the scheduled flights in transit across the territory of the Republic of China shall be submitted to the Taipei Area Control Center 7 working days prior to the operation for approval.

2. Documentary requirements for clearance of aircraft

   a. The under-mentioned documents must be submitted to the authorities for clearance on the entry and departure of the aircraft. All the documents listed below must follow the ICAO standard format as set forth in the relevant Appendixes to Annex 9, and are acceptable when furnished in English or Chinese and completed in legible handwriting.

   b. Aircraft documents required (arrival / departure)

需要單位 Required by	綜合報告表 General declaration	旅客艙單 passenger manifest	貨物艙單 Cargo manifest
海關 Customs	1	1	1
疾病管制署 Centers for Disease Control	1	1	1
民用航空局航空站 Airport Office, CAA	1	1	1
證照查驗 Passport and Visa Inspection	1	1	0
航空器清艙 Aircraft Security Check	1	1	0
貨物安檢 Cargo Security Check	1	0	1

註解：航空公司對航機載重平衡表應保留3個月，以備查驗。

1.2.3 不定期班機

1. 程序

a. 不定期飛航之航空器進出國境，並在境內起降者，如屬客、貨包機，相關規定如下：

i. 依據民用航空運輸業管理規則第十六條規定：民用航空運輸業申請國際客貨運包機，應於起飛10工作日前檢附申請書及包機合約副本，報請本局核准後始可飛航。

ii. 依據外籍民用航空運輸業管理規則第六條規定：外籍民用航空運輸業申請國際客運或貨運包機，應先檢附保安計畫報請民航局備查，並於預計起飛10工作日前檢附申請書、包機合約副本及保險證明報請民航局核准後，始可飛航。

iii. 依據外籍民用航空運輸業管理規則第七條規定：外籍民用航空運輸業申請國際客運或貨運包機，應合於下列規定，並不得以貨運包機名義集運貨物：

- 外籍民用航空運輸業申請包機，應以經營第三航權及第四航權為限。但依平等互惠原則或條約、協定另有規定或貨運包機有特殊理由經報請民航局核轉交通部核准者，不在此限。

- 經營國際包機不得影響定期航線班機之營運。但因條約或協定另有規定者，或有下列情形之一，經民航局核准者，不在此限：

○春節、清明節、端午節、中秋節或其他連續3日以上假期及其前後3日之國際客運包機申請。

○配合國際貿易旺季之臨時性國際貨運包機申請。

iv. 依據外籍航空器飛航國境規則第七條：如未在我國經營定期班機或無在臺總代理者，應委託飛航國際航線之我國籍民用航空運輸業代理提出申請。但申請商務專機及自用航空器飛航活動之飛航者，得委託經營國際商務專機之普通航空業代理提出申請；申請維修運渡或試飛之飛航者，得委託在臺依法設立之航空器維修廠代理提出申請；申請自由氣球之飛航，得委託飛航國內航線之我國籍民用航空運輸業或普通航空業代理提出申請。

v. 另由於相關之海關、證照查驗及衛生、檢疫等手續需事先申請方能作業，有關包機預計到達時間或預計起飛時間應提前48小時確定並通知相關單位。

vi. 除臺灣桃園國際機場及高雄國際機場外，本區目前開放國際客運包機之機場有：金門機場、臺東/豐年機場、嘉義機場、臺中/清泉崗機場、臺南機場、澎湖機場及花蓮機場。

b. 依據外籍航空器飛航國境規則第六條：不定期飛航之外籍航空器，飛入飛出國境，在境內起降，裝卸客、貨及郵件者，或在境內起降不裝卸客、貨及郵件者，除外籍民用航空運輸業，應依外籍民用航空運輸業管

Remarks: Completed weight and balance sheet shall be kept by an operator for a period of three months for inspection

1.2.3 NON-SCHEDULED FLIGHTS

1. Procedures

a. Any non-scheduled passenger/cargo charter flight wishing to land in and depart from the territory of the Republic of China by a foreign civil air transport enterprise, the relevant regulations are as follows:

i. For civil air transport enterprise to undertake international passenger/cargo charter services, application enclosing a copy of charter contract must be filed with the CAA, 10 working days before estimated departure date. (Article 16 of the Regulations of Civil Air Transport Enterprise refers.)

ii. For a foreign civil air transport enterprise to undertake international passenger or cargo charter flight services, shall enclose its aviation security program (aircraft operator security program) for CAA' s review. In addition, the documents (application, duplicate of charter contract, insurance certificate) shall be filed with CAA for approval 10 working days before the estimated departure date. No flight can be operated until the aforesaid approval is obtained from CAA. (Article 6 of the Regulations of Foreign Civil Air Transport Enterprises refers.)

iii. A foreign civil air transport enterprise applying for international passenger or cargo charter services shall meet the following requirements, and collecting goods for shipment intended for a cargo charter flight is prohibited. (Article 7 of the Regulations of Foreign Civil Air Transport Enterprises refers.)

- The charter service a foreign civil air transport enterprise applies for shall be restricted to Third Freedom and Fourth Freedom only, unless otherwise regulated according to a reciprocity principle, treaty or agreement, or when the cargo charter service is operated for special causes that have been filed with CAA and approved by MOTC.

- The operation of international charter service shall not affect the operations of scheduled air services, but if it is under a treaty or agreement, or there is any one of the circumstances in the following subparagraph with approval of CAA are not subject to the provisions:

○The application of international passenger charter during the Chinese New Year, Tomb Sweeping Day, Dragon Boat Festival, Mid-Autumn Festival holidays or other consecutive holidays with period of three or more

理規則辦理外，其餘應填具交通部民用航空局民用航空器飛航國境申請書於入境或出境2工作日前向民航局申請核准。

days and within three days before or after above holidays.

○The application of temporary international cargo charter during the international trade peak season.

iv. If applicant has not yet operated scheduled services or has no local general agent in the Republic of China, shall be delegated to a local civil air transport enterprise who is approved to conduct international operations. However, an enterprise or individual applying for business charter or private aircraft flight operations may delegate a general aviation enterprise engaged in international business charter operations to process the application. Application for maintenance ferry or test flights may delegated to an aircraft maintenance service legally registered in the Republic of China to process the application. Application for free balloon flight may delegated to a local civil air transport enterprise who is approved to conduct domestic operations or a general aviation enterprise to process the application. (Article 7 of the Regulations governing Foreign Aircrafts Flying in Republic of China Territory refers.)

v. Owing to the formalities concerning customs, immigration, as well as health and sanitation can only be available on a "on request" basis, prior notice of the planned ETA and EOBT is required 48 hours in advance.

vi. In Taipei FIR, besides Taipei/Taiwan Taoyuan and Kaohsiung International Airports, Kinmen airport, Taitung/Fongnian, Chiayi airport, Taichung/Cingcyuangang airport, Tainan airport, Penghu airport and Hualien airport are also available for international passenger charter flights.

b. Applications for approval to conduct operations for foreign non-scheduled aircraft (inbound or outbound, taking off and/or landing, with or without loading and unloading passengers, cargo and mail), shall be processed in accordance with the Regulations of Foreign Civil Air Transport Enterprise. For the other applicants, an application (Application for Civil aircraft to fly in national territory) for approval shall be completed and filed with CAA 2 workdays prior to the proposed date of entry to or exit from Republic of China. (Article 6 of the Regulations governing Foreign Aircrafts Flying in Republic of China Territory refers.)

交通部民用航空局民用航空器飛航國境申請書

航空器	1. 國籍標誌及編號	
	2. 型式	
使用人	3. 名稱	
	4. 國籍	
	5. 地址	

Application for Civil aircraft to fly in national territory

Aircraft	1. Nationality and registration mark	
	2. Type	
Operator	3. Name	
	4. Nationality	
	5. Address	

6. 駕駛員姓名及國籍		
7. 飛航性質		
8. 飛航編號		
9. 飛航路線		
10. 離到各機場日期及時間		
11. 飛越國境時日		
12. 乘客人數 (入出或過境)		
貨物	13. 貨主名稱及地址	
	14. 託運人名稱及地址	
	15. 貨物種類及總重量 (裝卸或過境)	
代理人	16. 名稱 (及代表人姓名)	
	17. 地址	
18. 備註		

i. 上項申請如用電報，應參照申請書格式所列項目，編號順序拍發。

ii. 僅屬飛越國境之飛航自第10欄至第17欄各項，可免填報。

iii. 與我無外交關係國家航空器之申請，必須詳填第16及第17欄。

c. 不定期飛航之航空器飛越國境，而不在境內降落者，應由航空器使用人依上項格式填具民用航空器飛航國境申請書，於入境前1工作日送達臺北區域管制中心，經核准後實施。上述申請如用電報，應參照申請格式所列項目編號順序，拍發至臺北區域管制中心(RCAAZQZX)或傳真申請(03-3860270)或使用交通部民用航空局航班管理整合系統申請(https://caafmis.caa.gov.tw)。

2. 航空器結關手續之文書規定
同定期班機規定。

1.2.4 自用航空器

1. 程序

a. 任何自用航空器意欲飛越或進入國境降落，必須獲得中華民國民用航空局之許可。

b. 入境及過境許可之申請及申請書，送達所需之時限及其申請書中所列各項資料均按不定期班機之規定處理。

6. Nature of flight		
7. Type of flight		
8. Flight number		
9. Airways flown		
10. Estimated date & time and aerodrome of entry		
11. Estimated date & time and aerodrome of departure		
12. Number of passengers		
Cargo	13. Name of consignee and address	
	14. Name of consignor and address	
	15. Type and total weight (handling or transit)	
Agent	16. Title (and name of representative)	
	17. Address	
18. Remark		

i. In case the application is submitted by telegram, the message shall be dispatched according to all items, serial number and order of the application form.

ii. Need not fill in items 10 to 17 in case of transit flight.

iii. Item 16 & 17 must be filled in precisely, if the aircraft belongs to the country that has no diplomatic relations with the Republic of China.

c. For non-scheduled flight that transits across the territory of the Republic of China without landing, the above application for the permit shall be submitted to Taipei Area Control Center by the aircraft operator 1 working day in advance of the date of proposed operation for approval. In case the application is submitted by telegram, the message shall be dispatched according to all items, serial numbers and order of the application form to Taipei Area Control Center (RCAAZQZX). The application is also acceptable by fax (886-3-3860270) or by the Flight Management Integration System (https://caafmis.caa.gov.tw).

2. Documentary Requirements for Clearance of aircraft
Same requirements as for scheduled flights.

1.2.4 PRIVATE FLIGHTS

1. Procedures

a. If an operator intends to carry out a private flight into or transit across the territory of the Republic of China, he must obtain a permit from the CAA.

b. The Application, information and time required for permission for entry and transit flights should

2. 航空器結關手續之文書規定
   同定期班機規定。

1.2.5 航空器公共衛生之處理

按世界衛生組織所定有關規定處理。

be accomplished in accordance with non-schedule flight procedures.

2. Documentary Requirements for Clearance of aircraft
   Same requirements as for scheduled flights.

1.2.5 PUBLIC HEALTH MEASURES APPLIED TO AIRCRAFT

Measures taken are in accordance with related regulations prescribed by WHO.

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